

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on November 11, 2022. The complaint is directed against HOGAR LUZ Y GAS S.L. with NIF B02832673 (hereinafter, the respondent). The reasons for the complaint are as follows:

The complainant states that he received a charge from the respondent in his bank account, with which he claims to have made no contractual agreement, and therefore proceeded to return the receipt.

Along with his complaint, he provides:

- Complaint to the Consumer Office of the City Council of Guadalajara and its referral to the respondent without response.
- Return of the bank receipt.
- Report to the National Police of Guadalajara dated October 25, 2022, with report number 13681/22.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by electronic notification, was not collected by the responsible party within the availability period, being understood as rejected in accordance with the provisions of Article 43.2 of the LPACAP on December 2, 2022, as stated in the certificate in the file; the forwarding was reiterated on December 5, 2022, by certified postal mail, and was again returned as absent.

No response has been received to this forwarding letter.

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THIRD: On February 11, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The General Subdirector of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

The respondent has been required to provide a description of the contracting processes, as well as a copy of all available documentation justifying the contractual relationship with the complainant.

They have also been required to provide copies of the complaints and contacts they have had with this client and details of the actions taken, detailing, where applicable, the possible involvement of the Data Protection Officer.

A first request was sent by postal mail on June 5, 2023, which was returned on June 21, 2023, marked as "unknown."

A new telematic request was sent via the NOTIFICA system on November 22, 2023, recorded as correctly accessed on November 28, 2023.

FIFTH: According to the report obtained from the Axesor tool, the entity HOGAR LUZ Y GAS S.L. is an SME (Microenterprise), established in 2020, for which no financial information is available.

SIXTH: On February 6, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and

64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

SEVENTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which, in summary, it stated that: "Given the initiation of this sanctioning procedure by this Agency, a thorough analysis of the circumstances related to the complaint filed by the complainant has been carried out, which are outlined below: I.- Analyzing the files of the complainant, the recording of the contract with the complainant, made on July 1, 2022, is identified, by which he contracts the energy services for which he provides a bank receipt in his complaint. The recording of the contract between the respondent and the complainant is submitted to the sanctioning procedure as Document Number One, in which it is evidenced that the complainant's data was obtained lawfully by the respondent.

C/ Jorge Juan, 6
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28001 – Madrid
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3/6

II.- At the time of contracting the energy services with the respondent, the claimant voluntarily, freely, specifically, informed, and unequivocally grants his express consent for the contracting of the services offered by HOGAR LUZ Y GAS, S.L.

III.- As can be verified in the recording, it is the claimant himself who provides his personal data, including name, surname, ID number, email, contact phone number, and bank account number for direct debit payments. Therefore, it can only be concluded that the claimant's data was obtained lawfully by the respondent, and that at no time was it processed without legitimacy or legal basis by HOGAR LUZ Y GAS S.L. Furthermore, the processing of the claimant's personal data by HOGAR LUZ Y GAS S.L. has been, at all times, in accordance with the purpose informed to the claimant and authorized by him, and there are no facts that could lead to the imputation of any infringement regarding personal data protection, which should result in the acceptance of the present allegations and the dismissal and filing of the current sanctioning procedure as the existence of punishable facts that led to the initiation of this sanctioning file has not been proven."

EIGHTH: On February 20, 2024, the instructor of the procedure agreed to carry out the following evidence: <<1. The complaint filed by A.A.A. and its documentation, the documents obtained and generated during the admission phase of the complaint, and the report of preliminary investigation actions that are part of the procedure AI/00134/2023 are reproduced for evidentiary purposes. 2. Likewise, the allegations to the initiation agreement of the referenced sanctioning procedure, presented by HOGAR LUZ Y GAS S.L., and the documentation accompanying them are reproduced for evidentiary purposes>>.

NINTH: On March 14, 2024, a resolution proposal was made proposing: "That the Director of the Spanish Agency for Data Protection proceed to FILE the sanctioning procedure with file number EXP202212242 opened against the entity HOGAR LUZ Y GAS S.L. with NIF B02832673, as the commission of the infringement of Article 6.1 of the GDPR has not been proven."

TENTH: Once the resolution proposal was notified, on March 14, 2024, the respondent did not make any allegations regarding the previous one.

From the actions taken in the present procedure and the documentation in the file, the following has been proven:

PROVEN FACTS

FIRST: The claimant states that the respondent made a charge to her bank account without having signed any contract with her or having given her consent for it.

SECOND: There is in the file a bank debit receipt and its return to the respondent on July 13, 2022.

THIRD: There is in the file a complaint filed with the Municipal Consumer Office of Guadalajara, dated August 2, 2022.

FOURTH: There is in the file a report to the National Police, report no. 13681/22, Guadalajara

department dated October 25, 2022 against the respondent, which records the events that occurred. FIFTH: It is evidenced in the file a telephone conversation in which the person identifying himself as A.A.A. gives his express consent for the contracting of the services offered by HOGAR LUZ y GAS, S.L. and provides his personal data, including name, surname, ID number, email, contact phone number, and bank account number for direct debit payments.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Article 6.1 of the GDPR

Article 6 of the GDPR, "Lawfulness of processing," states in its paragraph 1 the circumstances under which the processing of third-party data is considered lawful:

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;

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5/6

- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child. The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions.

In this case, the respondent has provided a voice recording in which the complainant can be heard giving verbal consent for the contracting of the services of the respondent. Therefore, the processing that the respondent has carried out of the complainant's personal data is in accordance with Article 6.1 of the GDPR.

For all of which, it must be concluded that, after analyzing the reported facts, the allegations made by the respondent, and the evidence provided in the procedure, no evidentiary elements have been established that would allow attributing to the respondent a violation of Article 6.1 of the GDPR.

Therefore, and in light of the above, by the Director of the Spanish Agency for Data Protection.

RESOLVES:

FIRST: TO FILE the sanctioning procedure with file number EXP202212242 opened against the entity HOGAR LUZ Y GAS S.L. with NIF B02832673 for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to the reported entity HOGAR LUZ Y GAS S.L. with NIF B02832673.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

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